

TENTATIVE RULING

Case: **Estrada v. Garcia**
 Case No. CV2025-2260

Hearing Date: **June 25, 2026** **Department Fourteen** **9:00 a.m.**

Motion for leave:

Plaintiffs Felipe Estrada and Alicia Navarrete’s unopposed motion for leave to file second amended complaint is **GRANTED**. (Code Civ. Proc., § 473; Cal. Rules of Court, rule 3.1324; Schaps decl., ¶¶ 1-12, Exhibits A-D.) The proposed second amended complaint, attached as Exhibit A to the declaration of Michael A. Schaps, is deemed filed as of the hearing date.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to compel further:

On the Court’s own motion, plaintiffs’ motion to compel further responses to tax-related discovery is **CONTINUED** to **August 26, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Lodewyk Enterprises, L.P. v. Trig Builders, Inc.**
Case No. CV2025-1132

Hearing Date: **June 25, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Trig Builders, Inc. and Yossi Malul’s motion to vacate a default is **DENIED**. (Code Civ. Proc., § 473, subds. (b) & (d).) As to defendants’ request for relief under section 473(b), defendants did not file this motion within six months after the default judgment was taken, and the motion was not “accompanied by a copy of the answer or other pleading proposed to be filed therein.” (Code Civ. Proc., § 473, subd. (b).) As to defendants’ request for relief under section 473(d), defendants have failed to demonstrate that they were not properly served with the summons and complaint. (Code Civ. Proc., §§ 473, subd. (d), 415.20, subd. (b); see also Evid. Code, § 647; Malul decl., ¶¶ 1-6.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.